

Case :- WRIT - C No. - 3407 of 2021

Petitioner :- Shashikant Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Niladra Shekhar Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Shri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondent Nos. 2 and 3 and learned Standing Counsel representing the State.

The instant writ petition has been filed seeking the following relief:

"1. To issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 25.9.2020 issued by the Tehsildar, Mau.

2. To issue a writ order or direction in the nature of mandamus directing the respondents not to give effect to the recovery citation dated 25.9.2020 issued by the Tehsildar, Mau, respondent No. 4.

At the outset, learned counsel for the respondent-Power Corporation submits that an FIR was registered against the petitioner on 09.12.2019 with respect to theft of electricity, which was challenged by the petitioner before this Court by filing a writ petition. The writ petition was got dismissed as withdrawn on the ground that the petitioner intends to get the amount compounded under Section 152 of the Electricity Act. thereafter the petitioner never approached the respondent-Corporation. Prior to filing of the writ petition, final assessment has also been made and pursuant thereto, the recovery citation has been issued against the petitioner.

Learned counsel appearing on behalf of the respondent-Corporation further submits that since the petitioner is disputing the accuracy of bill, he has an alternative remedy to approach respondent

No. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Learned counsel for the respondent-Corporation has provided the required document to the learned counsel for the petitioner.

In this view of the matter, we dispose of the writ petition with the directions to the petitioner to move a representation before respondent No. 2 within two weeks from today, which shall be considered and decided by a reasoned and speaking order by respondent No. 2 strictly in accordance with law within four weeks thereafter after affording due opportunity of hearing to the petitioner.

For a period of six weeks or till the disposal of representation by respondent No. 2, whichever is earlier, no coercive measure shall be taken against the petitioner.

Order Date :- 4.2.2021

Ishrat